

Law & Motion

2. 9:00 AM CASE NUMBER: C22-01164
CASE NAME: ALEJANDRO TORRES VS. B & M TEAR OFF, INC.
*HEARING ON MOTION IN RE: LEAVE TO FILE 1ST AMENDED COMPLAINT
FILED BY: TORRES, ALEJANDRO
TENTATIVE RULING:

This matter has been reassigned to Department 16 and reset to July 15, 2026.

3. 9:00 AM CASE NUMBER: C22-01284
CASE NAME: DUSTIN GRAHAM VS. ALLIED WASTE SYSTEMS, INC.
*HEARING ON MOTION IN RE: PRELIMINARY APPROVAL AND PAGA SETTLEMENT
FILED BY: GRAHAM, DUSTIN
TENTATIVE RULING:

This matter has been reassigned to Department 16 and reset to July 15, 2026.

4. 9:00 AM CASE NUMBER: C23-02357
CASE NAME: LISA ROSS VS. CHENETTE CARTER
HEARING ON SUMMARY MOTION
FILED BY: ROSS, CHARLIE
TENTATIVE RULING:

Before the Court is Defendant Charlie Ross' Motion for Summary Judgment.

The Motion is **denied without prejudice** as outlined below.

Procedural Background

Plaintiff Lisa Ross filed her initial complaint on September 21, 2023. The operative First Amended Complaint was filed on December 15, 2023. On December 2, 2025, Defendant Charlie Ross sought and obtained a hearing date for the motion for summary judgment/adjudication. The Order set the hearing date for March 12, 2026. It also specifically stated: "You are ordered to file the motion within 7 calendar days of this order." (All caps removed.)

Over two months later, on February 10, 2026, Defendant Charlie Ross filed the instant Motion for Summary Judgment ("Motion").

Legal Standard – Notice

Code of Civil Procedure section 437c(a) provides, in pertinent part: "Notice of the motion and supporting papers shall be served on all other parties to the action at least 81 days before the time appointed for hearing. . . . If the notice is served by facsimile transmission, express mail, or another method of delivery providing for overnight delivery, the required 81-day period of notice shall be increased by two court days." (Code Civ. Proc. § 437c(a)(2).) The summary judgment statute does not